

CHAPTER 27.

An Act to prevent the Sale of Intoxicating Liquors to Children.
[17th August 1901.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Repeal of
49 & 50 Vict.
c. 56.

1. The Intoxicating Liquors (Sale to Children) Act, 1886, is hereby repealed.

Sale of liquors
to children to
be illegal.

2. Every holder of a licence who knowingly sells or delivers or allows any person to sell or deliver, save at the residence or working place of the purchaser, any description of intoxicating liquor to any person under the age of fourteen years for consumption by any person on or off the premises, excepting such intoxicating liquors as are sold or delivered in corked and sealed vessels in quantities not less than one reputed pint for consumption off the premises only, shall be liable to a penalty not exceeding forty shillings for the first offence and not exceeding five pounds for any subsequent offence; and every person who knowingly sends any person under the age of fourteen years to any place where intoxicating liquors are sold or delivered or distributed, for the purpose of obtaining any description of intoxicating liquor, excepting as aforesaid, for consumption by any person on or off the premises, shall be liable to like penalties.

Messengers of
licensees.

3. Nothing in this Act shall prevent the employment by a licensed person of a member of his family or his servant or apprentice as a messenger to deliver intoxicating liquors.

Provisions
for legal
proceedings
under Act.

4. For the purposes of all legal proceedings under this Act, this Act shall be construed, in England, as one with the Licensing Acts, 1872-1874; in Scotland, as one with the Licensing (Scotland) Acts, 1828 to 1897; and, in Ireland, as one with the Licensing (Ireland) Acts, 1833-1900.

Definitions.

5. The term "corked" means closed with a plug or stopper, whether it is made of cork or wood or glass or some other material.

The expression "sealed" means secured with any substance without the destruction of which the cork, plug or stopper cannot be withdrawn.

Short title.

6. This Act may be cited for all purposes as the Intoxicating Liquors (Sale to Children) Act, 1901.

Commence-
ment of Act.

7. This Act shall come into operation on the first day of January one thousand nine hundred and two.

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